

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

ANTHONY URBISTONDO,

Plaintiff, **SUMMONS**

-against-

Index No.:

THE CITY OF NEW YORK, POLICE OFFICER SMIT
FELIZ, Shield No. 00684, SERGEANT RICARDO
WYMAN, SERGEANT GENAO and POLICE OFFICERS
JOHN DOES # 1-10 (names and number of whom are
unknown at present),

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to Answer the Complaint in this action, and to serve a copy of your Answer to the Complaint, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 27, 2018

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Police Officer Smit Feliz, Shield No. 00684, 52nd Precinct, 3016 Webster Ave., Bronx,
NY, 10467

Sergeant Ricardo Wyman, 52nd Precinct, 3016 Webster Ave., Bronx, NY, 10467
Sergeant Geneo, 52nd Precinct, 3016 Webster Ave., Bronx, NY, 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ANTHONY URBISTONDO,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER SMIT
FELIZ, Shield No. 00684, SERGEANT RICARDO
WYMAN, SERGEANT GENAO and POLICE OFFICERS
JOHN DOES # 1-10 (names and number of whom are
unknown at present),

Defendants.

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff ANTHONY URBISTONDO, by his attorneys, Jacobs & Hazan, LLP, as and for
his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 29, 2017, at approximately 8:30 pm., plaintiff Anthony Urbistondo was lawfully present at Orchard Beach, in the vicinity of 1 Orchard Beach Road, Bronx, New York, waiting to watch a fireworks display that was scheduled to occur at the beach that evening, when defendants assaulted, battered, falsely arrested and imprisoned plaintiff and subjected plaintiff to the use of excessive force, causing plaintiff to suffer severe physical and emotional injuries. The excessive force used against plaintiff by defendants included, but was not limited to shooting plaintiff with a Taser gun, piercing plaintiff's skin with the barbs from the Taser gun, electrocuting plaintiff, punching plaintiff with a closed fist, pushing, kicking, slapping and manhandling plaintiff, without cause or legal justification. Additionally, the defendants provided the Bronx District Attorney's Office with false, misleading and incomplete information and evidence regarding the officers' purported basis for arresting plaintiff and charging him with crimes. Defendants denied plaintiff the right to due process and the right to a fair trial and maliciously prosecuted plaintiff for several crimes he did not commit and for which the defendants lacked probable cause to accuse him of committing. The individually named defendant police officers also unlawfully searched plaintiff without reasonable suspicion or probable cause to believe plaintiff committed a crime and also intentionally and/or negligently subjected plaintiff to emotional distress, simply to embarrass plaintiff in front of his friends and family by engaging in the unlawful behavior

described herein toward plaintiff, without any legal justification to subject plaintiff to the assault, battery and harassment by the defendants. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, frisked, searched, confined, falsely imprisoned/ arrested, assaulted, battered, denied plaintiff the right to due process/ right to a fair trial, maliciously prosecuted, and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Anthony Urbistondo is a resident of the state of New York.

3. Defendant Police Officer Smit Feliz, Shield No. 00684, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant Police Officer Smit Feliz, Shield No. 00684, is and was at all times relevant herein, assigned to the Patrol Borough Bronx command

5. Defendant Police Officer Smit Feliz, Shield No. 00684, is being sued in his individual and official capacity.

6. Defendant Sergeant Ricardo Wyman, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant Sergeant Ricardo Wyman is and was at all times relevant herein, assigned to the Patrol Borough Bronx command.

8. Defendant Sergeant Ricardo Wyman is being sued in his individual and official capacity.

9. Defendant Sergeant Geneo, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant Sergeant Geneo is and was at all times relevant herein, assigned to the Patrol Borough Bronx command.

11. Defendant Sergeant Geneo is being sued in his individual and official capacity.

12. Defendants New York City Police Officers John Does # 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Defendants New York City Police Officers John Does # 1-10 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50 and in accordance with New York State law, and on November 20, 2017 plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H.

17. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

18. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

19. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

20. By way of background, on June 29, 2017 at approximately 8:30 pm plaintiff Anthony Urbistondo was lawfully present with several members of his family and friends at Orchard Beach, in the vicinity of 1 Orchard Beach Road, Bronx, New York, waiting to watch a fireworks show that was scheduled to occur at Orchard Beach that evening.

21. Before the fireworks show began, plaintiff's sister walked into the water at the beach to quickly rinse the sand off of her body.

22. The defendants responded to the location where plaintiff's sister went into the water to rinse the sand off of her body, advised plaintiff's sister that she was not permitted to go in the water to rinse the sand off of her body and they ordered her to leave the premises of Orchard Park Beach because, according to defendants, she violated the rules and could not stay for the fireworks show.

23. On June 29, 2017 at 8:30 pm plaintiff observed his sister being assaulted and battered by defendants without cause or legal justification, at Orchard Beach, in the vicinity of 1 Orchard Beach Road, Bronx, New York.

24. Plaintiff witnessed defendants, including but limited to Police Officer Smit Feliz, physically assaulting and battering his sister without cause or legal justification, including but not limited to slapping her, pushing her and physically striking her.

25. . As plaintiff approached the defendant officers that were assaulting and battering his sister to see what was going on, defendant Police Officer Smit Feliz redirected his attention from plaintiff's sister to plaintiff and assaulted, battered, and subjected plaintiff to the use of excessive force, by slapping plaintiff across the face one time with an open hand.

26. Then, defendant Police Officer Smit Feliz focused his attention back to plaintiff's sister and continued to violently assault and batter plaintiff's sister.

27. Plaintiff asked defendant Police Officer Smit Feliz to leave his sister alone and to stop assaulting and battering her, as she had done nothing wrong.

28. In response to plaintiff's pleas for defendant Police Officer Smit Feliz to stop striking his sister, defendant Officer Feliz focused his attention back to plaintiff and proceeded to strike and punch plaintiff's face with a closed fist, without any cause or legal justification to physically strike plaintiff.

29. Thereafter, without cause or legal justification the individually named defendants electrocuted plaintiff with a Taser gun on plaintiff's upper chest, knocking plaintiff to the ground.

30. Plaintiff ripped the barbs and Taser wires from his chest while he was on the ground, but the defendants continued to assault and batter plaintiff and subject plaintiff to the use of excessive force by hitting, striking, pushing, and punching plaintiff with their hands and fists, without cause or legal justification.

31. While defendant Officer Feliz was physically striking plaintiff, another defendant police officer struck plaintiff repeatedly, all across plaintiff's body with the officer's asp, all without cause or legal justification.

32. At no time relevant herein did plaintiff commit a crime, nor did the defendants possess an objective factual basis to establish probable cause to believe plaintiff committed a crime or violated the law in any way.

33. Nevertheless, the defendants unlawfully handcuffed plaintiff and falsely arrested/ imprisoned him without probable cause or legal justification.

34. An ambulance was called to the location of plaintiff's arrest to treat the injuries to plaintiff's body that were caused by the assault, battery, and use of excessive force against plaintiff by the defendants.

35. Plaintiff was handcuffed and shackled to a gurney and transported via ambulance to Jacobi Hospital for treatment of his injuries caused by the excessive force used by the defendants.

36. Plaintiff remained handcuffed and shackled in an extremely uncomfortable manner for the entire time he was at Jacobi Hospital receiving medical treatment.

37. After medical professionals treated plaintiff's injuries and conducted several medical tests to assess plaintiff's present medical condition, and cleared plaintiff to be discharged from the hospital, defendants transported plaintiff against his will to the 45th Precinct.

38. Defendants unlawfully searched plaintiff without probable cause or legal justification at the 45th Precinct.

39. , Plaintiff was unlawfully fingerprinted, photographed and detained in a filthy, insect and rodent infested holding cell by defendants at the 45th Precinct for several hours.

40. At approximately 2:00 am on June 30 2017, the defendants transported plaintiff from the 45th Precinct to Bronx Central Booking where he was unlawfully detained in filthy and crowded holding cells for many hours, with individuals accused of committing serious violent crimes.

41. Plaintiff was unlawfully detained at Bronx Central Booking where the unlawful detention of plaintiff continued until approximately 4:00 pm on June 30 2017.

42. At no time did the defendant police officers recover any illegal drugs, weapons or contraband of any kind from plaintiff's person or from a location within plaintiff's possession, custody or control.

43. At no time did the defendant police officers observe plaintiff commit a crime or break a law, and the defendant police officers did not have a legal basis or probable cause to arrest plaintiff.

44. At no time did plaintiff commit a crime, nor did the defendant police officers have any reason to believe he committed a crime.

45. Nevertheless, the defendant police officers unlawfully handcuffed plaintiff and arrested him without legal justification or probable cause.

46. At no time did plaintiff resist arrest in any manner.

47. The individually named defendant police officer, falsely communicated to the Bronx District Attorney's Office that plaintiff had committed a crime despite knowing that they lacked a legal basis to stop plaintiff and had no basis to allege plaintiff committed a crime.

48. The individually named defendant police officers provided the Bronx County District Attorney's Office with false, misleading, and incomplete information and evidence regarding the officers' purported basis for establishing probable cause to arrest plaintiff and charge him with several crimes.

49. Plaintiff was arraigned in Bronx County Criminal Court on June 30, 2017 at approximately 4:00 pm and based upon the defendants false and misleading allegations against him, plaintiff was charged with committing several crimes he did not commit, including but not limited to Assault, Obstructing Governmental Administration, Harassment, and Resisting Arrest.

50. Plaintiff was released from custody on his own recognizance at arraignment.

51. A criminal prosecution was initiated against plaintiff without probable cause based upon the false, misleading and incomplete facts/ evidence provided to the DA's Office by the defendant police officers regarding the officers' purported basis for arresting plaintiff and charging him with crimes.

52. Thereafter, Plaintiff was required to appear in Bronx Criminal Court on two occasions to address the false criminal charges brought against him by defendants.

53. The criminal prosecution brought against plaintiff by defendants terminated in plaintiff's favor when all criminal charges were dismissed and sealed in their entirety on October 25, 2017.

54. The assault, battery and excessive force used by the officers against plaintiff caused plaintiff suffered numerous injuries throughout his body, including but not limited to puncture wounds to his chest from being shot with Taser gun, swelling and pain to his face, and severe pain throughout the remainder of his body.

55. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution, but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

56. The unlawful frisk, search, false arrest, false imprisonment, malicious prosecution, assault, battery, denial of the right to due process and denial of the right to a fair trial, and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, frisked, unlawfully seized, unlawfully searched, falsely arrested and falsely imprisoned, maliciously prosecute, and denied the right to due process/ right to a fair trial without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

59. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

62. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

63. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

68. The conduct of defendants in stopping, frisking, and searching, plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

69. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

75. Defendants lacked probable cause to search plaintiff.

76. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

79. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

82. Defendants commenced and continued a criminal proceeding against plaintiff.

83. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

84. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

85. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

87. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

88. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights Denial of Right to Due Process/ Fair Trial

89. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 88 with the same force and effect as if fully set forth herein.

90. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the District Attorney's Office.

91. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the District Attorney's Office.

92. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the District Attorney's Office.

93. In withholding/creating false evidence against plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

94. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

95. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

96. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

97. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. The use of excessive force by defendants against plaintiff by shooting plaintiff with the Taser gun, electrocuting plaintiff, striking plaintiff repeatedly with an asp, repeatedly punching plaintiff in the face, hitting, pushing and slapping plaintiff was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

99. Additionally, placing plaintiff in handcuffs and iron leg shackles to be transported via ambulance for medical treatment at Jacobi Hospital was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

100. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

101. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

EIGHTH CAUSE OF ACTION

Assault

102. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force and effect as if more fully set forth at length herein.

103. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

104. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

106. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

107. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Battery

108. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 107 with the same force and effect as if more fully set forth at length herein.

109. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

110. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

111. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

112. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

113. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Negligence

114. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 113 with the same force and effect as if more fully set forth at length herein.

115. Defendants owed a duty of care to plaintiff.

116. To the extent defendants claim that plaintiff's physical injuries were not caused by the defendants' intentional actions during the course of plaintiff's arrest, and instead were accidentally caused by defendants either before, during, or after they arrested plaintiff then defendants breached that duty of care by causing plaintiff to suffer physical injuries as a result of defendants careless, reckless, negligent, and/or accidental behavior.

117. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

118. All of the foregoing occurred without any fault or provocation by plaintiff.

119. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

120. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

121. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

122. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 121 with the same force and effect as if more fully set forth at length herein.

123. By forcing plaintiff to be transported to Jacobi Hospital for medical treatment in handcuffs and iron leg shackles, without any basis for placing plaintiff in such severe restraints and by forcing plaintiff to endure the humiliation of being assaulted, battered, Tasered and falsely arrested in front of his family and friends, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

124. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

125. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

126. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

127. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELVTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress

128. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 127 with the same force and effect as if more fully set forth at length herein.

129. The above-described conduct by defendants in forcing plaintiff to be transported to Jacobi Hospital for medical treatment in handcuffs and iron leg shackles, without any basis for placing plaintiff in such severe restraints and by forcing plaintiff to endure the humiliation of being assaulted, battered, Tasered and falsely arrested in front of his family and friends was outrageous, atrocious so extreme in degree to go beyond all possible bounds of decency, and utterly intolerable in a civilized community.

130. Defendants' conduct was intentional, wanton and reckless and was done with a total disregard of the risks to plaintiff's health and safety.

131. As a direct and proximate result of the acts alleged above, plaintiff suffered severe emotional distress, humiliation, mental anguish, and physical distress.

132. The acts of defendants alleged above were willful, wanton, flagrant, malicious, oppressive, and performed with a total disregard for plaintiff's health safety and welfare, and justify the award of punitive damages.

133. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

134. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

135. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

136. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

137. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 136 with the same force and effect as if more fully set forth at length herein.

138. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

139. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTEENTH CAUSE OF ACTION

Failure to Intervene

140. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 139 with the same force and effect as if more fully set forth at length herein.

141. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

142. Defendants failed to intervene to prevent the unlawful conduct described herein.

143. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

144. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

145. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

146. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

147. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

148. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

JURY DEMAND

149. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Anthony Urbistondo demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
September 27, 2018

By: /s/

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of

the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
September 27, 2018

_____/s/
DAVID M. HAZAN